



File No: EXP202403615

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TECNOCRÁTICA CENTRO DE DATOS S.L. (hereinafter, T.C.D.). After notifying the initiation agreement and following the actions taken by T.C.D. in response to the information request, on February 17, 2025, the proposal for resolution was issued, which is transcribed below:

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File No: EXP202403615

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202303448. The complaint was admitted for processing on May 4, 2023.

SECOND: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter).

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In the framework of the investigative actions, a request for information was sent to TECNOCRÁTICA CENTRO DE DATOS S.L., with NIF B86333523, regarding the complaint indicated in the first section, requiring that within five working days it present to this Agency the information and documentation specified therein. The request was registered for dispatch on June 7, 2023.

THIRD: The request for information was notified, in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), via electronic notification, and was not collected by the responsible party within the period of availability, as stated in the acknowledgment of receipt in the file, and therefore was understood to be rejected, and the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on June 18, 2023.

Although the notification was validly carried out by electronic means, for informational purposes, a copy of the request was sent to TECNOCRÁTICA CENTRO DE DATOS S.L., which accessed its content on February 8, 2024, as stated in the acknowledgment of receipt in the file.

FOURTH: Regarding the requested information, TECNOCRÁTICA CENTRO DE DATOS S.L. has not submitted any response to this Spanish Agency for Data Protection within the deadlines granted for that purpose.

FIFTH: According to the report obtained from the AXESOR tool, the entity TECNOCRÁTICA CENTRO DE DATOS S.L. is an SME, established in 2011, with a turnover of (...) euros in 2021.

SIXTH: On April 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TECNOCRÁTICA CENTRO DE DATOS S.L., in accordance with the

provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was received by TECNOCRÁTICA CENTRO DE DATOS S.L. on April 19, 2024, as stated in the acknowledgment of receipt in the file.

EIGHTH: On April 22 and 23, 2024, with entry registration numbers REGAGE24e00029320166 and REGAGE24e00029712594, TECNOCRÁTICA CENTRO DE DATOS S.L. submitted a written response to the information request indicated in the second and third backgrounds.

NINTH: Attached as an annex is a list of documents in the procedure.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: The information request indicated in the second and third background sections was notified in accordance with the provisions of the LPACAP.

SECOND: TECNOCRÁTICA CENTRO DE DATOS S.L. has not responded to the information request made by the Agency in the context of the investigation proceedings of file number EXP202303448 prior to the issuance of the agreement to initiate the present sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Action following the initiation agreement

In response to the action taken by TECNOCRÁTICA CENTRO DE DATOS S.L. in answering the information request, the following should be noted.

The response to the information request provided during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

Regarding the information communicated, this Agency acknowledges receipt of it, without this statement implying any pronouncement on it.

III

Unfulfilled obligation

In light of the facts presented, it is considered that TECNOCRÁTICA CENTRO DE DATOS S.L. has not provided the Spanish Data Protection Agency with the information it requested within the deadlines granted for this purpose.

With the aforementioned conduct of TECNOCRÁTICA CENTRO DE DATOS S.L., the investigative power that Article 58.1 of the GDPR confers on supervisory authorities, in this case, the AEPD, has been obstructed.

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Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to TECNOCRÁTICA CENTRO DE DATOS S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions."

IV

Classification and qualification of the infringement

The facts presented are considered to constitute an infringement attributable to TECNOCRÁTICA CENTRO DE DATOS S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of twenty million euros (€20,000,000) at most or, in the case of a company, an amount equivalent to four percent (4%) at most of the total annual global turnover of the previous financial year, opting for the higher amount. For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers."

V

Proposal for sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a coherent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In light of the facts presented, it is considered appropriate to impose a sanction on TECNOCRÁTICA CENTRO DE DATOS S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5.e) of the GDPR. The sanction that would correspond to be imposed is an administrative fine in the amount of €6,000.00.

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In light of the above, the following is issued:

PROPOSAL FOR RESOLUTION

That the Presidency of the Spanish Agency for Data Protection sanctions TECNOCRÁTICA CENTRO DE DATOS S.L., with NIF B86333523, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 6,000.00 euros.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make the voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at 4,800.00 euros, and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2,

it must be made effective by depositing it into the restricted account No. IBAN: ES00-0000-000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, it must send the proof of deposit to the General Subdirectorato of Inspection to proceed to close the file.

By virtue of this, you are notified of the above, and the procedure is made known so that within TEN DAYS you may allege anything you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.

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INSTRUCTOR

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ANNEX

Index of the file EXP202403615

13/03/2024 Diligence

12/04/2024 Agreement to initiate proceedings against TECNOCRÁTICA CENTRO DE DATOS S.L.

22/04/2024 Allegations from TECNOCRÁTICA CENTRO DE DATOS, S.L.

23/04/2024 Document from TECNOCRÁTICA -

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SECOND: On March 3, 2025, T.C.D. proceeded to pay the sanction in the amount of 4,800.00 euros, making use of the reduction provided for in the resolution proposal transcribed above.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose

both a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure,

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except for matters related to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

III

Voluntary Payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified proposal for resolution allowed for the voluntary payment of the proposed sanction, which would entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 4,800.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned proposal for resolution, and before a resolution was issued by this authority, T.C.D., on March 3, 2025, proceeded to make the voluntary payment, availing itself of the 20% reduction. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reduction shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure shall decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the proposal for resolution transcribed in this resolution.

The sum of the aforementioned amounts yields a total amount of 6,000.00 euros.

After TECNOCRÁTICA CENTRO DE DATOS S.L. has made the voluntary payment, albeit without acknowledgment of responsibility, it is proceeded, by virtue of Article 85 of the LPACAP, to reduce the aforementioned total by 20%, which results in a final amount of 4,800.00 euros.

The effectiveness of the aforementioned reduction is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202403615, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to TECNOCRÁTICA CENTRO DE DATOS S.L.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment upon the withdrawal or renunciation of any action or administrative appeal, this resolution shall be final in the administrative process and fully executable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the final administrative resolution may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

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